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dba John J. Dito & Son

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

07/30/2024
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO
(Unlimited Jurisdiction)

YASMINE CURITANA and IAN BEGG Plaintiffs, vs. LAUREN YVONNE TOM, et al., Defendants.	No. CGC-24-614482 **DEFENDANT MAVEN COMMERCIAL, INC. dba JOHN J. DITO & SON, ANSWER TO PLAINTIFFS' FIRST AMENDED COMPLAINT**

Defendant MAVEN COMMERCIAL, INC., doing business as John J. Dito & Son ("Defendant) for itself alone and for no other defendant, hereby answers the unverified First Amended Complaint ("Complaint") as follows:

1. Pursuant to the provisions of California Civil Procedure Code § 431.30(d), Defendant denies each and every, and all of the allegations of Plaintiffs' Complaint and denies that Plaintiffs sustained injury or damages in the sum alleged in the Complaint, or in any other sum or sums, or at all, as the result of any act or omission, or breach by this answering Defendant.

AFFIRMATIVE DEFENSES

First Affirmative Defense

(Failure To State A Claim)

2. The Complaint, and each purported cause of action therein, fails to state facts sufficient to constitute a cause of action against Defendant and further fails to state facts sufficient to entitle Plaintiffs to the relief sought, or to any other relief whatsoever, from Defendant.

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Second Affirmative Defense
(Comparative Negligence/Fault)

3. As a further, separate and affirmative defense, Defendant alleges that Plaintiffs were so careless and negligent about the matters alleged in the Complaint so as to have contributed in some degree to the damages and injuries alleged by Plaintiffs and therefore said carelessness and negligence completely bars any recovery or, alternatively, reduces the right of recovery by that amount which said negligence contributed to Plaintiffs' alleged damages and injuries pursuant to the doctrine of comparative negligence.

Third Affirmative Defense
(Fault of Others)

4. As a further, separate and affirmative defense, Defendant alleges that the causes of action alleged in the Complaint are barred, in whole or in part, in that the damages and injuries sustained by Plaintiffs, if any, were caused by the acts, omissions, negligence, or breach of obligations by parties, persons, or entities other than Defendant.

Fourth Affirmative Defense
(Assumption of Risk)

5. As a further, separate and affirmative defense, Defendant alleges that any damages, injuries or losses suffered by the Plaintiffs herein were caused by risks which Plaintiffs were well aware of and which Plaintiffs voluntarily assumed unto themselves.

Fifth Affirmative Defense
(Failure To Provide Notice)

6. As a further, separate and affirmative defense, Defendant alleges that the causes of action alleged in the Complaint are barred, in whole or in part, as a result of Plaintiffs' failure to give timely or proper notice of any defects or alleged breach of any contract, warranty, or duty.

Sixth Affirmative Defense
(Violation by Tenant of Affirmative Obligations)

7. As a further, separate and affirmative defense, Defendant alleges that at all times herein mentioned, Plaintiffs failed to comply with California Civil Code § 1941.2 by failing:

a. To keep that part of the premises which they occupy and use as clean and sanitary as the condition of the premises permit;

b. To dispose from their dwelling unit all rubbish, garbage or other waste in a clean and sanitary manner;

c. To properly use and operate all electrical, gas and plumbing fixtures and keep them as clean and sanitary as their condition permits;

d. Not to permit any person in the premises, with their permission, to willfully or wantonly, destroy, deface damage, impair, or remove any part of the structure or dwelling unit or the facilities, equipment or appurtenances thereto, nor themselves do any such thing;

e. To occupy the premises as their abode, utilizing portions thereof for living, sleeping, cooking or dining purposes only which were respectfully designed or intended to be used for such occupancies.

Seventh Affirmative Defense
(Statutes of Limitation)

8. As a further, separate and affirmative defense, Defendant alleges that the causes of action alleged in the Complaint are barred, in whole or in part, by the applicable statutes of limitation, including, but not limited to, California Code of Civil Procedure §§ 335.1, 337(1), 338(a), 338(b), 339(1), 339.5, 340(3), and 343.

Eighth Affirmative Defense
(Laches)

9. As a further, separate and affirmative defense, Defendant alleges that the causes of action alleged in the Complaint are barred, in whole or in part, under the doctrine of laches.

Ninth Affirmative Defense
(Estoppel)

10. As a further, separate and affirmative defense, Defendant alleges that the causes of action alleged in the Complaint are barred, in whole or in part, under the doctrine of estoppel.

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Tenth Affirmative Defense
(Waiver)

11. As a further, separate and affirmative defense, Defendant alleges that the causes of action alleged in the Complaint are barred, in whole or in part, under the doctrine of waiver.

Eleventh Affirmative Defense
(Prop 51/Civil Code Section 1431.1 et seq.)

12. As a further, separate and affirmative defense, Defendant alleges that liability for non-economic damages shall be and is reduced and limited by Civil Code section 1431.1et seq.

Twelfth Affirmative Defense
(Failure to Mitigate)

13. As a further, separate and affirmative defense, Defendant alleges that the damages claimed by Plaintiffs are barred, in whole or in part, by Plaintiffs' failure to take reasonable steps to mitigate Plaintiffs' damages, if any.

Thirteenth Affirmative Defense
(Tenants Failure to Comply)

14. As a further, separate and affirmative defense, Defendant alleges that at all times herein mentioned, one or more Plaintiffs failed to comply with the obligations and provisions of a lease agreement and, by virtue thereof, Plaintiffs' causes of action herein are barred, in whole or in part.

Fourteenth Affirmative Defense
(Unclean Hands)

15. As a further, separate and affirmative defense, Defendant alleges that at all times relevant hereto, Plaintiffs' claims are barred by the doctrine of unclean hands.

Fifteenth Affirmative Defense
(Lack of Privity)

16. As a further, separate and affirmative defense, Defendant alleges that at all times herein relevant, no privity existed between Plaintiffs and Defendant and as a result thereof, Plaintiffs' causes of action are barred, in whole or in part.

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Sixteenth Affirmative Defense
(Contractual Limits of Liability)

17. As a further, separate and affirmative defense, Defendant alleges that at all times herein mentioned, the claims of Plaintiffs stated herein were barred by contractual limits of liability in the contracts executed by Plaintiffs.

Seventeenth Affirmative Defense
(Lack of Standing)

18. As a further, separate and affirmative defense, Defendant alleges that Plaintiffs lack standing to pursue any and all claims asserted in Plaintiffs' Complaint.

Eighteenth Affirmative Defense
(Punitive Damages Unconstitutional)

19. As a further, separate and affirmative defense, Defendant alleges that Plaintiffs' Complaint to the extent that it seeks exemplary or punitive damages pursuant to California Civil Code Section 3294, violate Defendants' right to procedural due process under the Fourteenth Amendment of the United States Constitution, and Article I, Section 7 of the Constitution of the State of California, and therefore fails to state a cause of action upon which either punitive or exemplary damages can be awarded.

Nineteenth Affirmative Defense
(Punitive Damages Unconstitutional)

20. As a further, separate and affirmative defense, Defendant alleges that Plaintiffs' Complaint, to the extent that it seeks punitive or exemplary damages pursuant to California Civil Code § 3294, violates Defendant's right to protection from "excessive fines" as provided in the Eighth Amendment of the United States Constitution and Article I, Section 17 of the Constitution of the State of California, and violate Defendant's right to substantive due process as provided in the Fifth and Fourteenth Amendments of the United States Constitution and the Constitution of the State of California, and therefore fails to state a cause of action supporting the punitive or exemplary damages claimed.

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Twentieth Affirmative Defense
(Punitive Damages Unconstitutional)

21. As a further, separate and affirmative defense, Defendant alleges that Plaintiffs' Complaint, and each cause of action therein, fails to state facts sufficient to warrant an award of exemplary or punitive damages.

Twenty-First Affirmative Defense
(Punitive Damages Unconstitutional)

22. As a further, separate and affirmative defense, Defendant alleges the imposition of any punitive damages in this matter would violate the United States Constitution prohibition against laws impairing the obligation of contracts and the Eighth Amendment's proscription against excessive fines.

Twenty-Second Affirmative Defense

23. As a further, separate and affirmative defense, Defendant alleges that Defendant did not have an opportunity to cure the defects alleged in Plaintiff's' Complaint.

WHEREFORE, Defendant prays as follows:

1. That Plaintiffs take nothing by reason of their Complaint;

2. That the Complaint be dismissed with prejudice;

3. That Defendant be awarded its costs and reasonable attorney's fees incurred in defense of this matter; and

4. For all such other and further relief as the Court deems just and proper.

Dated: July 30, 2024

NIVEN & SMITH, LLP

By:_____

LEO LaROCCA
Attorneys for Defendant Maven Commercial, Inc.
dba John J. Dito & Son

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PROOF OF SERVICE

I am a citizen of the United States and employed in the City and County of San Francisco, State of California; I am over the age of eighteen years and not a party to the within above-entitled action; my business address is 275 Battery Street, Suite 1120, San Francisco, California 94111-3383.

On the date below, I served **DEFENDANT MAVEN COMMERCIAL, INC. dba JOHN J. DITO & SON, ANSWER TO PLAINTIFF'S FIRST AMENDED COMPLAINT** on the parties in said action or proceedings addressed as follows:

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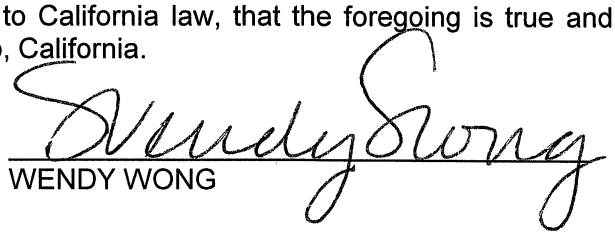
☒ BY ELECTRONIC SERVICE: I caused said document(s) to be e-served via my electronic service address (wendy@nivensmith.com) to each email address noted above.

I declare under penalty of perjury, pursuant to California law, that the foregoing is true and correct. Executed on July 30, 2024, at San Francisco, California.



WENDY WONG

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